

All Hallows the Less Churchyard Act, 1958

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CHAPTER xxvi

An Act to authorise the sale of the churchyard appurtenant to the former church of All Hallows the Less in the city of London to authorise the erection of buildings thereon and for other purposes. [7th July 1958.]

WHEREAS the ancient Church of All Hallows the Less in the city of London (hereinafter called "the church") was destroyed in the Great Fire of London in the year sixteen hundred and sixty-six and was not rebuilt and the parish of All Hallows the Less was subsequently united with the parish of All Hallows the Great:

And whereas the united parish of All Hallows the Great and Less was united with the parish of Saint Michael Royal with Saint Martin Vintry by Order in Council of Her late Majesty Queen Victoria dated the sixteenth day of May eighteen hundred and ninety-three:

And whereas by virtue of a reorganisation scheme for the city of London made under the Reorganisation Areas Measure 1944 and coming into force on the second day of February nineteen hundred and fifty-four the former united parish of Saint Michael Royal with Saint Martin Vintry and All Hallows the Great and Less now forms part of the parish of Saint James Garlickhythe with Saint Michael Queenhithe and Holy Trinity the Less:

And whereas the freehold of the churchyard appurtenant to the church is now vested in the incumbent of the benefice of Saint James Garlickhythe with Saint Michael Queenhithe and Holy Trinity the Less and the present incumbent thereof is the Reverend Maurice Frederic Foxell:

And whereas burials in the said churchyard were discontinued by an Order in Council of Her late Majesty Queen Victoria dated the ninth day of August eighteen hundred and ninety-three:

And whereas it is expedient that the said churchyard should be sold and that the purchaser thereof should be enabled to develop the same:

And whereas it is expedient that such provisions as are contained in this Act with respect to the sale and development of

the said churchyard and the removal therefrom of any human remains interred therein should be enacted:

And whereas it is expedient that the other provisions contained in this Act should be enacted:

And whereas the objects of this Act cannot be effected without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted and be it enacted by the Queen's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

Short title.

1. This Act may be cited as the All Hallows the Less Churchyard Act 1958.

Interpretation.

2. In this Act unless the subject or context otherwise requires—

“the benefice” means the benefice of Saint James Garlickhythe with Saint Michael Queenhithe and Holy Trinity the Less or any benefice in which the churchyard may from time to time be situate;

“the bishop” means the Bishop of London for the time being and during a vacancy in the see of London includes the guardian of the spiritualities thereof;

“the churchyard” means the lands comprised in the churchyard appurtenant to the former church of All Hallows the Less in the city of London which said lands are described in the schedule hereto and are shown and coloured pink on a plan marked “Plan of All Hallows the Less Churchyard” signed in triplicate by the Right Honourable the Lord Merthyr the chairman of the committee of the House of Lords to whom the Bill for this Act was referred one copy of which has been deposited at the office of the Clerk of the Parliaments House of Lords one in the Private Bill Office of the House of Commons and one at No. 1 The Sanctuary in the city of Westminster being the office of Messrs. Lee Bolton and Lee the solicitors to the Incumbent;

“the corporation” means the mayor commonalty and citizens of the city of London;

“the council” means the mayor aldermen and commons of the city of London in common council assembled;

“enactment” has the same meaning as in the Town and Country Planning Act 1947;

“the fund” means the London Diocesan Fund;

“the Incumbent” means the incumbent for the time being of the benefice or during any period when the benefice is vacant the bishop;

“the owner” means the person in whom the churchyard is for the time being vested;

“the parish” means the parish of Saint James Garlickhythe with Saint Michael Queenhithe and Holy Trinity the Less;

“the parochial church council” means the parochial church council of the parish.

3.—(1) The Incumbent may sell the churchyard or any part thereof for such price or consideration in such manner and upon and subject to such terms as the Incumbent may think fit.

Power to sell churchyard and application of proceeds.

(2) The Incumbent after deducting the amount of the cost of and in connection with the removal of human remains incurred by the Incumbent under section 6 (Removal of human remains from churchyard) of this Act and the amount of any costs charges and expenses incurred by the Incumbent under section 9 (Costs of Act) of this Act or in connection with any sale shall pay the net proceeds of any sale effected under the powers conferred by this section to the fund.

(3) All moneys received by the fund under this section shall be dealt with by the fund in accordance with the following provisions of this subsection:—

(a) The fund shall first apply the said moneys in defraying the cost of restoring and re-equipping the church of Saint James Garlickhythe with Saint Michael Queenhithe and Holy Trinity the Less in accordance with plans specifications and particulars approved or to be approved by the Incumbent and the parochial church council and subject to the Incumbent obtaining any necessary licence or faculty of the Consistory Court of the Diocese of London;

(b) The fund shall secondly apply any unexpended balance of the moneys received by them under this section towards the cost of restoring and re-equipping the guild church of Saint Michael Paternoster Royal in accordance with plans specifications and particulars to be approved by the vicar and the guild church council of the said guild church subject to the said vicar obtaining any necessary licence or faculty of the Consistory Court of the Diocese of London.

4. As from the passing of this Act the churchyard shall be freed and discharged from all trusts uses obligations disabilities and restrictions whatsoever which immediately before the passing thereof attached thereto and from all rights and interests of any person who is an heir executor administrator or relative of any deceased person whose remains are interred in the churchyard and from all other trusts uses obligations disabilities and restrictions whatsoever which attached thereto immediately before the passing of this Act by reason of the churchyard or any part thereof being a disused burial ground or forming the churchyard or enclosure of a church or otherwise:

Discharge of trusts and restrictions affecting churchyard and saving for private rights.

Provided that nothing in this Act shall operate to affect prejudicially any private right or easement (not being a right in respect of a grave) over the churchyard or any part thereof which attached thereto immediately before the passing of this Act.

Power to use
churchyard for
building or
other purposes.

5. Notwithstanding anything contained in any enactment but subject to the provisions of this Act it shall be lawful at any time after the passing of this Act to use deal with or dispose of the churchyard or any part thereof for building or for any other purpose in like manner as if no part thereof had ever been used or set apart for the purpose of burial of human remains or had ever been or formed the churchyard or enclosure of a church.

Removal of
human
remains from
churchyard.

6.—(1) Before the owner erects or causes to be erected any building on the churchyard or uses the churchyard or causes the same to be used for any purpose other than as a burial ground the Incumbent shall remove or cause to be removed therefrom the remains of all deceased persons interred therein.

(2) Before proceeding to remove any such remains the Incumbent shall give notice of his intention so to do by publishing a notice once in each of two successive weeks in a newspaper circulating in the city of London with an interval between publications of not less than six days and shall display a like notice in a conspicuous place in the churchyard and such notice shall have embodied in it the substance of subsections (3) (4) (5) (6) (7) and (8) of this section.

(3) At any time within two months after the first publication of such notice any person who is an heir, executor, administrator or relative of any deceased person whose remains are interred in the churchyard or any part thereof may give notice in writing to the Incumbent of his intention to undertake the removal of such remains and thereupon he shall be at liberty without any faculty for the purpose but subject as hereinafter mentioned to any regulations made by the bishop to cause such remains to be removed to and reinterred in any consecrated burial ground or cemetery in which burials may legally take place but in the case of a churchyard only with the consent of the incumbent of the benefice concerned.

(4) If any person giving such notice as aforesaid shall fail to satisfy the Incumbent that he is such heir, executor, administrator or relative as he claims to be the question shall be determined on the application of either party in a summary manner by the registrar of the Consistory Court of the Diocese of London who shall have power to make an order specifying who shall remove the remains and as to the payment of the costs of the application.

(5) The expenses of such removal and reinterment (not exceeding in respect of remains removed from any one grave the sum of twenty-five pounds) shall be defrayed by the Incumbent such sum to be apportioned if necessary equally according to the number of remains in the grave.

(6) If within the aforesaid period of two months no such notice as aforesaid shall have been given to the Incumbent in respect of the remains in any grave or if after such notice has been given the person giving the same shall fail to comply with the provisions of this section and with any regulation of the bishop the Incumbent

may without any faculty for that purpose remove the remains of the deceased person and cause them to be interred in such other consecrated burial ground or cemetery in which burials may legally take place as subject to the consent of the bishop the Incumbent thinks suitable for the purpose but in the case of interment in a churchyard the previous consent of the incumbent of the benefice concerned shall also be required.

(7) All monuments and tombstones relating to the remains of any deceased person removed under this section shall at the expense of the Incumbent be removed and re-erected at the place of re-interment of such remains or at such place as the bishop may direct on the application (if any) of such heir executor administrator or relative as aforesaid or failing such application on the application of the Incumbent and the Incumbent shall cause a record to be made of each monument and tombstone taken from the churchyard under this section containing—

(a) a copy of the inscription on it; and

(b) if it is intended to preserve the monument or tombstone a statement showing where it has been taken to;

and shall deposit a copy of the record with the Registrar General.

(8) The removal of the remains of any deceased person under this section shall be carried out under the supervision and to the satisfaction of the medical officer of health of the city of London.

7. All objects of geological or antiquarian interest discovered on or under the churchyard during the execution of any works therein by the owner shall subject to the rights of the Crown and except so far as they may be the property of any other person be carefully preserved and removed and shall be deposited in the Guildhall Museum as the property of the corporation and the corporation acting by the council shall during the execution of any such works have power to enter and inspect such works for the purposes of this section.

Deposit of
objects of
interest.

8. This Act shall be deemed to be an enactment passed before and in force at the passing of the Town and Country Planning Act 1947 for the purposes of subsection (4) of section 13 (Development orders) and subsection (1) of section 118 (Application to land regulated by special enactments) of that Act.

Saving for
town and
country
planning.

9. All the costs charges and expenses preliminary to and of and incidental to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Incumbent.

Costs of Act.

SCHEDULE

DESCRIPTION OF THE LAND DEALT WITH BY THE FOREGOING ACT.

A piece of land in the City of London containing three thousand nine hundred and sixty-eight square feet or thereabouts bounded on the north by Upper Thames Street on the south by the cleared site of a war damaged property on the east by Cold Harbour Lane and on the west in part by the cleared site of a war damaged property and in part by the Hour Glass Public House.

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